

(2) No such agreement shall be entered into, and no person shall be designated under such an agreement, except with the consent of the Treasury.

(3) The consent of the Treasury to the designation of any person under such an agreement may be given generally in respect of persons of such descriptions, and subject to such limitations (if any), as may be specified in the consent.

6 & 7 Eliz. 2.
c. 14.

(4) Subsections (1) to (3) of section seven of the Overseas Service Act, 1958, shall apply to the interpretation of this section as if it were contained in that Act.

Short title.

2. This Act may be cited as the Overseas Service Act, 1961

CHAPTER 11

An Act to provide for conferring certain immunities on representatives of Governments of Commonwealth countries and the Republic of Ireland attending conferences in the United Kingdom and on their staffs.
[2nd March, 1961]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Diplomatic
immunities of
Common-
wealth repre-
sentatives
attending
conferences.

1.—(1) Where a conference is held in the United Kingdom and is attended by representatives of Her Majesty's Government in the United Kingdom and of the government or governments of one or more countries to which this section applies, the Secretary of State may compile a list of representatives of the last-mentioned government or governments attending the conference and members of their official staffs, and cause that list to be published in the London, Edinburgh and Belfast Gazettes, and every representative of a government to which this section applies who is for the time being included in the list shall, for the purpose of any enactment and rule of law or custom relating to the immunities of an envoy of a foreign Sovereign Power accredited to Her Majesty and of the retinue of such an envoy, be treated as if he were such an envoy and, subject to the provisions of this section, such of the members of his official staff as are for the time being included in the list shall be treated for the purpose aforesaid as if they were his retinue.

(2) Whenever it appears to the Secretary of State that any person ceases or begins to be qualified for inclusion in a list compiled under the foregoing subsection he may amend the list and cause a notice of the amendment or, if he thinks fit, an amended list to be published in the London, Edinburgh and Belfast Gazettes.

(3) Every list or notice published under this section in relation to any conference shall include a statement of the date from which the list or amendment takes or took effect; and the fact that any person is or was included or not included at any time among the persons entitled to diplomatic immunities as representatives attending the conference or as members of the official staff of any such representative may, if a list of those persons has been so published, be conclusively proved by producing the Gazette containing the list or, as the case may be, the last list taking effect before that time, together with the Gazettes (if any) containing notices of the amendments taking effect before that time, and by showing that the name of that person is or was at that time included or not included in the said list.

(4) A person who is a member of the official staff of a representative of the government of a country to which this section applies and is a citizen of the United Kingdom and Colonies and is not a citizen of that country shall not be entitled under the foregoing provisions of this section to any immunity except in respect of things done or omitted to be done in the course of the performance of his duties, and the name of a person whose immunity is limited by this subsection shall be entered in a separate part of any list compiled by the Secretary of State under subsection (1) of this section.

(5) The countries to which this section applies are Canada, Australia, New Zealand, the Union of South Africa, India, Pakistan, Ceylon, Ghana, the Federation of Malaya, Nigeria, the Federation of Rhodesia and Nyasaland and the Republic of Ireland.

2.—(1) Her Majesty may by Order in Council provide for including among the countries to which the foregoing section applies any country specified in the Order, being a country within the Commonwealth. Power to extend s. 1 to other Commonwealth countries.

(2) No recommendation shall be made to Her Majesty in Council to make an Order under this section unless a draft thereof has been laid before Parliament and approved by resolution of each House of Parliament.

3.—(1) This Act may be cited as the Diplomatic Immunities Short title
(Conferences with Commonwealth Countries and Republic of and extent.
Ireland) Act, 1961.

(2) This Act extends to Northern Ireland.

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